

476.1 support teams to facilitate transition back to the community of children from inpatient
476.2 treatment facilities, psychiatric residential treatment facilities, and child and adolescent
476.3 behavioral health hospitals. The general fund base included in this act for this purpose is
476.4 \$1,875,000 in fiscal year 2024 and \$0 in fiscal year 2025.

476.5 (b) Beginning April 1, 2024, counties may fund and continue conducting activities
476.6 funded under this section.

476.7 (c) This section expires March 31, 2024.

476.8 **Sec. 13. REDUCING RELIANCE ON CHILDREN'S CONGREGATE-CARE**
476.9 **SETTINGS.**

476.10 This act includes \$200,000 in fiscal year 2022 and \$0 in fiscal year 2023 for an analysis
476.11 of the utilization and efficacy of current residential and psychiatric residential treatment
476.12 facility treatment options for children under the state Medicaid program. The commissioner
476.13 of human services must conduct the analysis. When conducting the analysis, the
476.14 commissioner must collaborate with the Department of Health, the Department of Education,
476.15 hospitals, children's treatment facilities, social workers, juvenile justice officials, and parents
476.16 of children receiving care. The commissioner may collaborate with children receiving care
476.17 when conducting the analysis. By February 1, 2022, the commissioner must submit to the
476.18 chairs and ranking minority members of the legislative committees with jurisdiction over
476.19 health and human services a report that identifies systemic obstacles in transitioning children
476.20 into community-based options; identifies gaps in care for children with the most acute
476.21 behavioral health treatment needs; and provides recommendations, including estimated
476.22 costs, to develop infrastructure, eliminate system barriers, and enhance coordination to
476.23 ensure children have access to behavioral health treatment services based on medical
476.24 necessity and family and caregiver needs.

476.25 **Sec. 14. TASK FORCE ON ELIMINATING SUBMINIMUM WAGES.**

476.26 Subdivision 1. **Establishment; purpose.** The Task Force on Eliminating Subminimum
476.27 Wages is established to develop a plan and make recommendations to phase out payment
476.28 of subminimum wages to people with disabilities on or before August 1, 2025.

476.29 Subd. 2. **Definitions.** For the purposes of this section, "subminimum wage" means wages
476.30 authorized under section 14(c) of the federal Fair Labor Standards Act, Minnesota Statutes,
476.31 section 177.28, subdivision 5, or Minnesota Rules, parts 5200.0030 and 5200.0040.

476.32 Subd. 3. **Membership.** (a) The task force consists of 16 members, appointed as follows:

- 477.1 (1) the commissioner of human services or a designee;
- 477.2 (2) the commissioner of labor and industry or a designee;
- 477.3 (3) the commissioner of education or a designee;
- 477.4 (4) the commissioner of employment and economic development or a designee;
- 477.5 (5) a representative of the Department of Employment and Economic Development's
- 477.6 Vocational Rehabilitation Services Division appointed by the commissioner of employment
- 477.7 and economic development;
- 477.8 (6) one member appointed by the Minnesota Disability Law Center;
- 477.9 (7) one member appointed by The Arc of Minnesota;
- 477.10 (8) three members who are persons with disabilities appointed by the commissioner of
- 477.11 human services, at least one of whom must be neurodiverse, and at least one of whom must
- 477.12 have a significant physical disability;
- 477.13 (9) two representatives of employers authorized to pay subminimum wage and one
- 477.14 representative of an employer who successfully transitioned away from payment of
- 477.15 subminimum wages to people with disabilities, appointed by the commissioner of human
- 477.16 services;
- 477.17 (10) one member appointed by the Minnesota Organization for Habilitation and
- 477.18 Rehabilitation;
- 477.19 (11) one member appointed by ARRM; and
- 477.20 (12) one member appointed by the State Rehabilitation Council.
- 477.21 (b) To the extent possible, membership on the task force under paragraph (a) shall reflect
- 477.22 geographic parity throughout the state and representation from Black, Indigenous, and
- 477.23 communities of color.
- 477.24 Subd. 4. **Appointment deadline; first meeting; chair.** Appointing authorities must
- 477.25 complete member selections by January 1, 2022. The commissioner of human services shall
- 477.26 convene the first meeting of the task force by February 15, 2022. The task force shall select
- 477.27 a chair from among its members at its first meeting.
- 477.28 Subd. 5. **Compensation.** Members shall be compensated and may be reimbursed for
- 477.29 expenses as provided in Minnesota Statutes, section 15.059, subdivision 3.
- 477.30 Subd. 6. **Duties; plan and recommendations.** The task force shall:

- 478.1 (1) develop a plan to phase out the payment of subminimum wages to people with
478.2 disabilities by August 1, 2025;
- 478.3 (2) consult with and advise the commissioner of human services on statewide plans for
478.4 limiting subminimum wages in medical assistance home and community-based services
478.5 waivers under Minnesota Statutes, sections 256B.092 and 256B.49;
- 478.6 (3) engage with employees with disabilities paid subminimum wages and conduct
478.7 community education on the payment of subminimum wages to people with disabilities in
478.8 Minnesota;
- 478.9 (4) identify and collaborate with employees, employers, businesses, organizations,
478.10 agencies, and stakeholders impacted by the phase out of subminimum wage on how to
478.11 implement the plan and create sustainable work opportunities for employees with disabilities;
- 478.12 (5) propose a plan to establish and evaluate benchmarks for measuring annual progress
478.13 toward eliminating subminimum wages;
- 478.14 (6) propose a plan to monitor and track outcomes of employees with disabilities;
- 478.15 (7) identify initiatives, investment, training, and services designed to improve wages,
478.16 reduce unemployment rates, and provide support and sustainable work opportunities for
478.17 persons with disabilities;
- 478.18 (8) identify benefits to the state in eliminating subminimum wage by August 1, 2025;
- 478.19 (9) identify barriers to eliminating subminimum wage by August 1, 2025, including the
478.20 cost of implementing and providing ongoing employment services, training, and support
478.21 for employees with disabilities and the cost of paying minimum wage to employees with
478.22 disabilities;
- 478.23 (10) make recommendations to eliminate the barriers identified in clause (9); and
- 478.24 (11) identify and make recommendations for sustainable financial support, funding, and
478.25 resources for eliminating subminimum wage by August 1, 2025.
- 478.26 **Subd. 7. Duties; provider reinvention grants.** (a) The commissioner of human services
478.27 shall establish a provider reinvention grant program to promote independence and increase
478.28 opportunities for people with disabilities to earn competitive wages. The commissioner
478.29 shall make the grants available to at least the following:
- 478.30 (1) providers of disability services under Minnesota Statutes, sections 256B.092 and
478.31 256B.49, for developing and implementing a business plan to shift the providers' business
478.32 models away from paying waiver participants subminimum wages;

- 479.1 (2) organizations to develop peer-to-peer mentoring for people with disabilities who
479.2 have successfully transitioned to earning competitive wages;
- 479.3 (3) organizations to facilitate provider-to-provider mentoring to promote shifting away
479.4 from paying employees with disabilities a subminimum wage; and
- 479.5 (4) organizations to conduct family outreach and education on working with people with
479.6 disabilities who are transitioning from subminimum wage employment to competitive
479.7 employment.
- 479.8 (b) The provider reinvention grant program must be competitive. The commissioner of
479.9 human services must develop criteria for evaluating responses to requests for proposals.
479.10 Criteria for evaluating grant applications must be finalized no later than November 1, 2021.
479.11 The commissioner of human services shall administer grants in compliance with Minnesota
479.12 Statutes, sections 16B.97 and 16B.98, and related policies set forth by the Department of
479.13 Administration's Office of Grants Management.
- 479.14 (c) Grantees must work with the commissioner to develop their business model and, as
479.15 a condition of receiving grant funds, grantees must fully phase out the use of subminimum
479.16 wage by April 1, 2024, unless the grantee receives a waiver from the commissioner of
479.17 human services for a demonstrated need.
- 479.18 (d) Of the total amount available for provider reinvention grants, the commissioner may
479.19 award up to 25 percent of the grant funds to providers who have already successfully shifted
479.20 their business model away from paying employees with disabilities subminimum wages to
479.21 provide provider-to-provider mentoring to providers receiving a provider reinvention grant.
- 479.22 Subd. 8. **Report.** By February 15, 2023, the task force shall submit to the chairs and
479.23 ranking minority members of the committees and divisions in the senate and house of
479.24 representatives with jurisdiction over employment and wages and over health and human
479.25 services a report with recommendations to eliminate by August 1, 2025, the payment of
479.26 subminimum wage, and any changes to statutes, laws, or rules required to implement the
479.27 recommendations of the task force. The task force must include in the report a
479.28 recommendation concerning continuing the task force beyond its scheduled expiration.
- 479.29 Subd. 9. **Administrative support.** The commissioner of human services shall provide
479.30 meeting space and administrative services to the task force.
- 479.31 Subd. 10. **Expiration.** The task force shall conclude their duties and expire on March
479.32 31, 2024.

480.1 Sec. 15. **MOVING TO INDEPENDENCE: SUBMINIMUM WAGE PHASE-OUT.**

480.2 (a) This act includes \$4,300,000 in fiscal year 2022 and \$5,300,000 in fiscal year 2023
480.3 for the commissioner of human services to establish a reinvention grant program to promote
480.4 independence and increase opportunities for people with disabilities to earn competitive
480.5 wages. The general fund base included in this act for this purpose is \$4,500,000 in fiscal
480.6 year 2024 and \$0 in fiscal year 2025.

480.7 (b) All grant activities must be completed by March 31, 2024.

480.8 (c) This section expires June 30, 2024.

480.9 Sec. 16. **RESEARCH ON ACCESS TO LONG-TERM CARE SERVICES AND**
480.10 **FINANCING.**

480.11 This act includes \$400,000 in fiscal year 2022 and \$300,000 in fiscal year 2023 for an
480.12 actuarial research study of public and private financing options for long-term services and
480.13 supports reform to increase access across the state. The commissioner of human services
480.14 must conduct the study. Of this amount, the commissioner may transfer up to \$100,000 to
480.15 the commissioner of commerce for costs related to the requirements of the study. The general
480.16 fund base included in this act for this purpose is \$0 in fiscal year 2024 and \$0 in fiscal year
480.17 2025.

480.18 Sec. 17. **ADDITIONAL FUNDING FOR RESPITE SERVICES AND STUDIES.**

480.19 Subdivision 1. **Home and community-based service system reform analysis.** This act
480.20 includes \$200,000 in fiscal year 2022 and \$200,000 in fiscal year 2023 for an analysis to
480.21 identify future system reforms to strengthen access to respite services and caregiver supports
480.22 to enhance the Medicaid home and community-based service system for older adults and
480.23 caregivers in Minnesota. The commissioner of human services must conduct the analysis.
480.24 The commissioner must examine Minnesota's existing programs serving older adults and
480.25 identify solutions that provide cost-effective respite services and caregiver supports to an
480.26 expanding population of older adults. The general fund base included in this act for this
480.27 purpose is \$0 in fiscal year 2024 and \$0 in fiscal year 2025.

480.28 Subd. 2. **Own your own future study.** This act includes \$183,000 in fiscal year 2022
480.29 and \$0 in fiscal year 2023 for an analysis of long-term trends in older adults' utilization of
480.30 Medicaid expenditures and need for long-term care services and supports in Minnesota.
480.31 The commissioner of human services must conduct the analysis. The commissioner must
480.32 examine Minnesota's use of nursing facilities and assisted living facilities and utilize